

2.2. Duty of persons without residence nor place of business within a contracting state to be represented by a professional representative

According to Art. 133(1) EPC, no person shall be compelled to be represented by a professional representative in proceedings established by the EPC. However, Art. 133(2) EPC stipulates that natural or legal persons not having either a contracting state residence or their principal place of business within the territory of one of the contracting states must be represented by a professional representative and act through him in all proceedings established by the Convention, other than in filing a European patent application. The Implementing Regulations may permit other exceptions. T. 1157/01 reviews the applicable law.

In J. 1/04 the board stated that there is no obligation for an applicant having a principal place of business within an EPC contracting state to be represented in proceedings established by the Convention. If, however, the applicant wishes to be represented, he must authorise either an employee or a professional representative or legal practitioner.

Regarding an employee of a **group of companies**, T. 2308/10 says that an employee of a company in such a group is not entitled to represent another company belonging to the same group. T. 298/97 had already established that, there being no provision in the Implementing Regulations pursuant to Art. 133(3), last sentence, EPC, the EPC did not currently allow the representation of one legal person by an employee of another economically related legal person.

In T. 213/89 the Japanese inventor replied directly to the EPO with a set of revised application documents, and accompanied by a letter to his representative indicating that the revised documents had also been sent to the representative. The board noted that no confirmation by the representative was received that any of the submissions directly received from the inventor should be regarded as an official reply to an EPO action. Since persons not having a residence or their principal place of business within the territory of one of the contracting states must act through their representative in the proceedings, the said submissions received direct could not be taken into account.

In T. 717/04, a letter from the appealing applicant, a natural person with an address not within the territory of one of the contracting states, was faxed to the EPO with arguments and a new set of claims to be taken into account. According to Art. 133(2) EPC 1973, since the appealing applicant's address was not within the territory of one of the contracting states, the board concluded that filing claims and arguments such as those in the appealing applicant's letter would have required professional representation. As these submissions were neither made nor endorsed by the representative, the board could not take them into account.

In T. 578/14 Mr S., as a resident of New Zealand, had to act through a representative in the appeal proceedings. Therefore, the board could not take into account requests and submissions, which were made neither by the representative nor endorsed by him (T. 213/89, T. 717/04, and J. 4/10). This did not apply to submissions which exclusively

concerned the appointment or change of a representative or the filing of an authorisation or of any information that the representative's authorisation has terminated.

In J 9/13 the Receiving Section refused the European patent application pursuant to Art. 90(5) EPC, because the applicant, resident in Moscow, had not appointed a professional representative as required by Art. 133(2) EPC. The appellant (applicant) contended that Art. 133(2) EPC did not apply to residents of the Russian Federation. The Russian Federation was a party to the "Partnership and Cooperation Agreement (PCA)". The board stressed that neither the European Patent Organisation nor the European Patent Office is part or member of the European Union. Therefore, neither the European Patent Organisation nor the European Patent Office are bound by the provisions of the PCA, neither of them is a "party" or "other party" pursuant to Art. 98 of the PCA. The appeal was deemed not to have been filed.

2.3. Professional representatives during the transitional period

One of the conditions for including a professional representative on the EPO list is that he has passed the European qualifying examination (EQE). During a transitional period after the EPC 1973 first entered into force, this requirement could be waived under the conditions laid down in Art. 163 EPC 1973 (see J 19/89, OJ 1991, 425; J 10/81). For all states acceding to the EPC 1973 at its inception, this period ended on 7.10.1981 (decision of the Administrative Council dated 6.7.1978, OJ 1978, 327). Art. 163 EPC 1973 was one of the transitional provisions, now superseded, and has therefore been deleted in the new EPC 2000.

Art. 163(6) EPC 1973 retains all its significance as a grandfather clause and is therefore preserved in the EPC 2000 to deal with the situation of national representatives of states acceding to the EPC in the future. The substance of the grandfather clause of Art. 163 EPC 1973 has therefore been integrated in Art. 134(3) EPC 2000 in simplified form, as a permanent provision of the EPC.

The reunification of Germany posed its own problems, in J 18/92, J 30/92, J 31/92, J 32/92 and J 33/92, regarding the admission of professional representatives. The appellants argued that the provisions of Art. 163(6) EPC 1973 should be applied to patent attorneys, even where they had qualified in West Germany and not the former GDR. In the board's view, Art. 163(6) EPC 1973 could only be applied by analogy to those finding themselves in a similar situation to the patent agents of a country acceding to the EPC. This requirement was fulfilled only by patent agents from the former GDR and not by their colleagues who had already been admitted in the West.

2.4. Procedural steps performed by a person other than the professional representative

A procedural act performed by a non-entitled person is to be treated in the same way as a missing signature (G 3/99, OJ 2002, 347; T 665/89; T 1048/00).

In J 28/86 (OJ 1988, 85) the Legal Board of Appeal held that a request for examination filed by a person who was not entitled to act as a representative in accordance with Art. 134 EPC 1973 was invalid. The board noted that the situation did not change because the representative had later been entered on the list of professional representatives. In this capacity he had neither approved nor resubmitted the invalid request he had made earlier.

In T 665/89 the board addressed the question of the admissibility of an opposition by an opponent whose residence was not in a contracting state, where the notice of opposition was signed by a person who was neither a professional representative nor an employee of the opponent. The board of appeal concluded that the actions of the unauthorised person ought to be judged as if the signature were missing, and thus assumed that the **deficiency** was remediable. The opponent supplied the missing correct signature at the EPO's invitation within the time limit laid down. The document thus retained the original date of receipt in accordance with R. 36(3), third sentence, EPC 1973 (R. 50(3) EPC). See also T 1427/09 of 17 November 2009.

R 18/09 the Enlarged Board of Appeal, referring in detail to G 3/99 (OJ 2002, 347), stated that concerning the principle that a plurality of persons acting in common be treated as a single party (a "group party") and the requirement that such a group party acts through a common representative which both apply to petition proceedings. It was also held in G 3/99 (point 20 of the Reasons) that there is no practical need to acknowledge the validity of procedural acts of one member of a group party who is not its common representative. Such a procedural act is treated by the EPO in the same way as a missing signature. Where an appeal is filed by a non-entitled person, it shall be considered as not duly signed and the common representative be invited to sign it within a given time limit. (See also G 3/99 under III.V.3.3.2 "Common representative").

In J 32/86 the board held that the mere appointment of a professional representative to meet the requirement of Art. 133(2) EPC 1973 (the appellant had his residence in the USA) did not automatically have the legal effect of validating acts previously performed by an applicant himself. The EPO was however obliged to give the representative a fair chance to remedy any deficiency of this kind that might have occurred before his appointment and which could still lawfully be remedied by him.

2.5. Submissions by a professional representative after transfer of opponent status

In T 1204/13, Mr S., the representative acting for the original opponent, submitted that it had since merged with its parent company. The board held that, if so, its opponent status would have been automatically transferred to its universal successor in title but, if not, it remained the opponent. In any event, Mr S. was entitled to act as professional representative in either case and so to make submissions on behalf of whichever opponent he now represented.

3. Legal practitioners entitled to act as professional representative

3.1. General issues

According to Art. 134(1) EPC, professional representation of natural or legal persons in proceedings established by the EPC may only be undertaken by professional representatives whose names appear on the above list. However, Art. 134(8) EPC (former Art. 134(7) EPC 1973) provides that professional representation in such proceedings may also be undertaken, in the same way as by a professional representative, by any legal practitioner qualified in one of the contracting states and having his place of business within such state, to the extent that he is entitled, within the said state, to act as a professional representative in patent matters. The arrangements for legal practitioners set out in Art. 134(8) EPC therefore constituted an exception.

In J 8/10 (OJ 2012, 472), the board observed that, if a legal practitioner wishes to act under Art. 134(8) EPC, the EPO considers whether he meets the conditions of that provision (i.e. is qualified in a contracting state and has his place of business and the right to act as a professional representative in patent matters in that state). If the legal practitioner fulfils the conditions, the EPO enters his name on a list which – like the list of associations of representatives – it keeps as an internal working tool and does not publish.

In J 19/89 (OJ 1991, 425) it was observed that the last clause of Art. 134(7), first sentence, EPC 1973 (Art. 134(8) EPC) prevented a "Rechtsanwalt", "legal practitioner" or "avocat" from having more extensive powers of representation before the EPO than he was entitled to before his national patent office. Art. 134(7) EPC 1973 was therefore a special rule limited in scope to the corpus of legal practitioners, which existed under various designations in all the contracting states.

In J 18/99 the board pointed out that under the current Spanish law, any legal practitioner qualified in Spain and having his place of business in Spain was entitled to represent clients in patent matters before the Spanish Patent and Trademark Office if he presented an authorisation from the party.

3.2. Register of legal practitioners

The register of legal practitioners must be clearly distinguished from the list of professional representatives established in accordance with Art. 134(1) to (4) EPC.

The objective of the list of professional representatives is to provide a survey of particularly qualified representatives in patent matters; it would be jeopardised if legal practitioners without such qualifications were included on the list. Accordingly, the conditions for entry on the list of professional representatives under Art. 134(2) EPC 1973 also apply to legal practitioners (D 14/93, OJ 1997, 561).

Whereas, according to Art. 134(4) EPC 1973, the entry of a person's name in the list of professional representatives entitles them to act in **all proceedings** established by the EPC 1973, the EPC 1973 does not contain any corresponding provision for legal

practitioners. Their competence to undertake representation before the EPO is not general, but depends directly on their complying with the provisions of Art. 134(7) EPC 1973 (J 27/95).

3.3. Qualifying conditions according to Article 134(8) EPC

3.3.1 Representation by a legal practitioner

In J 19/89 (OJ 1991, 425) the Legal Board of Appeal considered whether a patent attorney under national law should, in view of his legal qualifications and entitlement to act as a professional representative in national patent matters, be regarded as a "legal practitioner" within the meaning of Art. 134(7) EPC 1973 and hence be authorised to act before the EPO. The board decided that irrespective of his specialist qualifications and powers of representation in national patent matters, a **patent attorney** under national law could not be regarded as a "legal practitioner" within the meaning of Art. 134(7) EPC 1973, and therefore was not entitled to act as a professional representative before the EPO (see also D 14/93, OJ 1997, 561).

In J 27/95, the Legal Board of Appeal first made it clear that the competence of legal practitioners to undertake representation before the EPO depended directly on their complying with the provisions of Art. 134(7) EPC 1973. Thus, each time a legal practitioner made a request to act as a professional representative in proceedings before the EPO, the Legal Division had the right to examine whether he or she satisfied the conditions under Art. 134(7) EPC 1973. In its decision the board pointed out that a legal practitioner qualified in a contracting state had to have "his place of business in such State". The place of business within the meaning of Art. 134(7) EPC 1973 was the place (if any) at which a person practised his or her profession as legal practitioner.

See also T 643/01 (French lawyer) and T 1846/11 (no authorisation filed for legal practitioner, nor any subsequent approval by appellant submitted for steps taken by legal practitioner without such authorisation).

3.3.2 Common representative

In G 3/99 (OJ 2002, 347) the Enlarged Board of Appeal dealt with the question of the admissibility of joint oppositions and joint appeals. The decision makes it clear that an opposition filed in common, apart from the fact that it is filed by more than one person, is as much a single opposition as an opposition filed by only one person. In an opposition filed in common, there must in all cases be a **common representative** (Art. 133(4) and R. 100 EPC 1973) (R. 151 EPC), and only that common representative is entitled to act in the opposition proceedings on behalf of all the common opponents taken as a whole.

If the opposing party consists of a plurality of persons, an appeal must be filed by the common representative under R. 100 EPC 1973. Where the appeal is filed by a non-entitled person, the Board of Appeal shall consider it not to be duly signed and consequently invite the common representative to sign it within a given time limit. The non-entitled person who filed the appeal shall be informed of this invitation. If the previous